

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/16/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006966

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: MICHAEL ESCOBAR	
vs.	
DEFENDANT: BRIDGEWAY BRIGHT, INC.	

NATURE OF PROCEEDINGS: MOTION – OTHER: PRELIMINARY APPROVAL

RULING

Plaintiff filed an unopposed motion for preliminary approval of a class action settlement of wage and hour claims, including claims under PAGA (Private Attorney General Act). After review of the motion papers, the Court finds that class certification is appropriate pursuant to *Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal. 4th 1004, 1012. The class size of 126 non-exempt employees meets the numerosity and ascertainability requirements. These employees would all have claims typical of the class which consist of wages, rest breaks, accurate wage statements, and failure to timely pay all of wages. Additionally, Plaintiff and counsel have adequately demonstrated they can represent the class.

Additionally, the settlement meets the standards for preliminary approval as the parties exchanged discovery and then attended mediation. The amount of settlement, \$400,000 appears to take into account the strengths and weakness in pursuing litigation in this case. The court also preliminarily approves the attorneys' fees of 1/3 the settlement amount and plaintiff's enhancement fee.

The parties shall appear to address any objections and to schedule a date for final approval.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/16/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0007453

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: KEEP AMERICA SAFE
AND BEAUTIFUL

vs.

DEFENDANT: INTERCOMP COMPANY

NATURE OF PROCEEDINGS: 1) MOTION – OTHER: APPROVE PROPOSITION 65
SETTLEMENT

RULING

Plaintiff's motion for approval of Proposition 65 is granted and the Consent Judgment is approved. The settlement requires Defendant Intercomp to provide clear and reasonable health hazard warnings pursuant to the requirements of California Health & Safety Code §25601 et. seq. It also requires that Defendant pay the civil penalty for the alleged violations in the amount of \$3,500 and Plaintiff's attorney's fees of \$37,500. The attorney's fees which were negotiated are less than the time billed and the court finds them to be reasonable.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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